

**Justification Review Document
for
Other Than Full and Open Competition**

Program/Equipment: Archaeological Resources Protection Act (ARPA) Law Enforcement Services at Wister Lake, Le Flore County, OK.

Authority: In accordance with 10 U.S.C. 3204(a)(1), FAR 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements, and FAR 6.302-5 Authorized or required by statute.

Amount: Approximately [REDACTED]

Prepared by:

Typed Name: Ryan Kelly DSN: 918-669-7279

[REDACTED]

Date: _____

E-Mail: Ryan.J.Kelly@usace.army.mil

Contracting Officer:

Typed Name: Rudolfo J. Morales Jr. DSN: 918-669-7275

[REDACTED]

Date: _____

E-Mail: Rudolfo.J.Morales@usace.army.mil

Technical Representative:

[REDACTED]

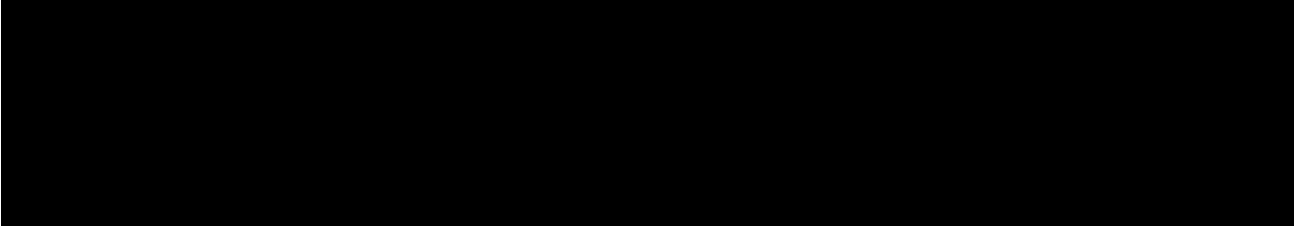
Requirements Representative:

[REDACTED]

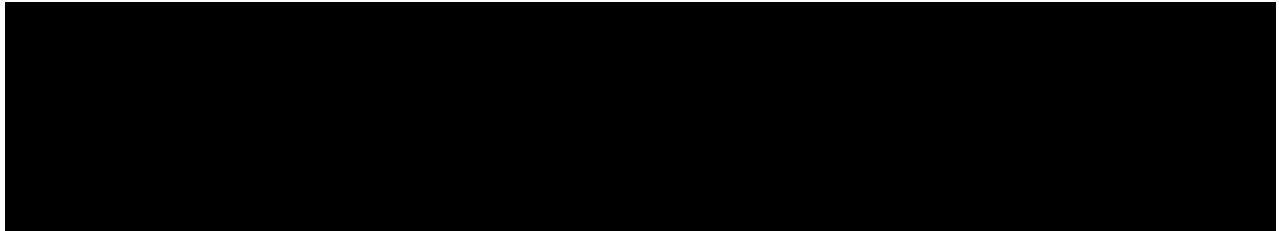
Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

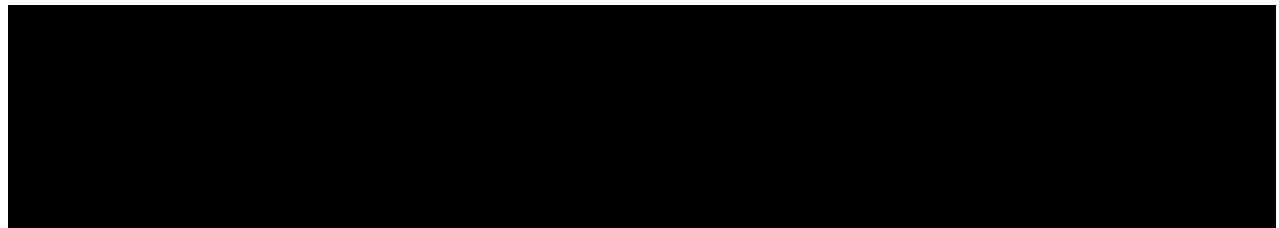
Project Manager



Legal Counsel



BOB Procurement Analyst



OTHER THAN FULL AND OPEN COMPETITION JUSTIFICATION

1. **Agency/Contracting Activity:** CESWT-CT-E

2. **Description of Action:**

Nature: ☒ New Requirement

☐ Follow-on Requirement

☐ Mod to Existing Purchase Order/Contract Number _____

Pricing: ☒ Firm-Fixed Price ☐ Time & Materials

☐ Cost

Funds: ☐ OMA

☒ Other Funds: IJA Funds

Name of Proposed Contractor: Choctaw Nation of Oklahoma

Street Address: 1802 Chukka Hina

City, State, Zip: Durant, OK 74701-7117

Phone: [REDACTED]

3. **Description of Services or Supplies:** This procurement is for ARPA Law Enforcement Services. The total amount of the procurement is expected to be approximately [REDACTED]

Law enforcement functions and actions can be performed only by duly authorized law enforcement agencies acting within their jurisdictions. Therefore, contracts can only be awarded to departments who are certified law enforcement agencies. Additionally, enforcement of the Archaeological Resources Protection Act (ARPA) (93 Stat. 721, 16 U.S.C. 470aa-470mm) requires a law enforcement officers who are certified to enforce ARPA.

The U.S. Army Corps of Engineers (USACE), Tulsa District (SWT), as a federal land manager, is responsible for compliance with and enforcement of ARPA. SWT requires supplemental law enforcement services for USACE fee-owned lands at the Wister Lake Project in LeFlore and Latimer Counties, Oklahoma to support ARPA compliance. Increased law enforcement services are necessary to protect the integrity of historic properties and other cultural resources, reduce violations of federal cultural resources laws, and improve prosecutions of those who violate cultural resources laws within the project boundaries of the U.S. Army Corps of Engineers, Tulsa District. The nature of the non-personal services is described and stipulated in this Statement of Work.

U.S. Army Corps of Engineers intends to award a firm-fixed price contract to Choctaw Nation, authorized under 10 USC 3204(a)(5) as implemented in FAR 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements, due to the unique service being requested, and FAR 6.302-5 Authorized or required by statute, due to the location of the services being within the tribal jurisdiction of Choctaw Nation. Choctaw Nation will be required to provide all labor, equipment, and supplies to perform surveillance and law enforcement services for USACE park and lake areas located within their respective counties

of jurisdictions. All Federal property under USACE control must be patrolled during the specified period of performance to include holidays to provide for the safety of the public.

4. **Authority:** In accordance with 10 U.S.C. 3204(a)(1), FAR 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements, and FAR 6.302-5 Authorized or required by statute.
5. **Reasons for Authority Cited:**
 - a. The current requirements can only be performed by certified, qualified Law Enforcement agencies and only by law enforcements officers who are certified to enforce ARPA. The local and state law enforcement agencies who have jurisdiction in this specific USACE area of operation (AO) do not have law enforcement officers who able to enforce Federal laws or are certified to enforce ARPA as required. Procurement of this requirement requires the use of FAR 13.106-1(b) (Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements) as the Choctaw Nation is the only law enforcement agency in the AO who is both able to enforce Federal laws and has official certified to enforce ARPA.
6. **Efforts to Obtain Competition:**
 - a. *Effective competition.* N/A
 - b. *Subcontracting competition.* N/A
7. **Actions to Increase Competition:** There is no practical way to increase competition for government provided law enforcement services. Due to the location and nature of the Corps areas requiring law enforcement services and the requirement for certified law enforcement providers, there will only be one agency in each project that will be able to fulfill the contract requirement.
8. **Market Research:** No competition could be facilitated to fulfill this requirement due to the locations, law enforcement agency jurisdictions, and nature of services. A dynamic small business search conducted among the States of Oklahoma, Kansas, Texas, New Mexico, Missouri, and Arkansas, utilizing NAICS Code 922120, Police Protection yielded zero (0) small business.

9. Interested Sources: In an effort to increase competition, notice of the proposed contract action will be synopsisized at SAM.gov for approximately fifteen (15) days. Respondents will be reviewed and detailed with the market research.

10. Other Facts

- a. *Procurement History.* The need for ARPA Law Enforcement is a new requirement and the Tulsa District has not procured this specific service before. Therefore, there is no procurement History.

11. Technical Certification: I certify that the supporting data under my cognizance which is included in this sole source justification is accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED]
[REDACTED] [REDACTED]
[REDACTED] [REDACTED]
[REDACTED] [REDACTED]

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED] DSN: [REDACTED]
[REDACTED] [REDACTED] Date: _____
[REDACTED] [REDACTED]

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

If competitive quotes or offers are received as anticipated a fair and reasonable price will be determined in accordance with FAR 13.106-3(a)(1); otherwise, the Government will rely on other techniques outlined in FAR 13.106-3(a)(2) to determine the price to be fair and reasonable.

Typed Name: Rudolfo J. Morales Jr. DSN: 918-669-7275
Signature: [REDACTED] Date: _____
E-Mail: Rudolfo.J.Morales@usace.army.mil

14. Contracting Officer Certification: This certification shall be made by the contracting officer who will sign the contract resulting from this justification and approval. Include the following statement:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Typed Name: Rudolfo J. Morales Jr. DSN: 918-669-7275

Signature:  Date: _____

E-Mail: Rudolfo.J.Morales@usace.army.mil

Approval

Based on the foregoing justification, I hereby approve the procurement of Law Enforcement Services on an other than full and open competition basis pursuant to the authority of 10 U.S.C. 2304(c)(1) services needed by the agency are available from only one responsible source or only from a limited number of responsible sources and no other type of property or services will satisfy the needs of the agency, and the services needed are authorized by statute or law, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

Typed Name: Rudolfo J. Morales Jr. DSN: 918-669-7275

Signature:  Date: _____

E-Mail: Rudolfo.J.Morales@usace.army.mil